



CNR: KAHC010200862022

NC: 2025:KHC:58337
RFA No. 823 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 7TH DAY OF AUGUST, 2025

BEFORE

THE HON'BLE MRS. JUSTICE K.S. HEMALEKHA

REGULAR FIRST APPEAL NO. 823 OF 2022 (INJ)

BETWEEN:

SMT K.P.LEELA
W/O SUDARSHAN MURTHY
AGED ABOUT 56 YEARS
R/A NO 24/23, 1ST MAIN ROAD
R.P.C LAYOUT, VIJAYANAGAR
BENGALURU

...APPELLANT

(BY SRI. H N BASAVARAJU.,ADVOCATE)

AND:

1. SRI FAIROZ PASHA
S/O BAKSHU SAB
AGED ABOUT 46 YEARS
DOING BUSINESS AT NO.03
FAIROZ METALS SHOP NO.1 K P LANE
JOLLY MOHALLA
BENGALURU

2. SMT VENKATAMMA
W/O LATE B C ANANTHAPPA
AGED ABOUT 75 YEARS
R/AT NO.113, 1ST MAIN ROAD
BOVI PALYA, RAJAJINAGARA
BENGALURU

Digitally signed by
MAMATHA K.
Location: HIGH COURT
OF KARNATAKA



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3. SRI RAMESHA
S/O LATE B C ANANTHAPPA
AGED ABOUT 53 YEARS
R/AT NO.113, 1ST MAIN ROAD
BOVI PALYA, RAJAJINAGARA
BENGALURU
4. SRI B C VENKATASWAMY
S/O LATE CHINNAPPA AGED ABOUT 71 YEARS
R/AT NO.113, 1ST MAIN ROAD
BOVI PALYA, RAJAJINAGARA
BENGALURU

...RESPONDENTS

(BY SRI.A.N. MATTARA, ADVOCATE FOR R1)

THIS RFA FILED UNDER SEC.96 R/W ORDER XLI RULE 1 OF CPC., AGAINST THE JUDGMENT AND DECREE DATED 23.03.2022 PASSED IN OS.NO. 25814/2007 ON THE FILE OF THE XIII ADDITIONAL CITY CIVIL AND SESSIONS JUDGE MAYOHALL UNIT, BENGALURU, DECREETING THE SUIT FOR INJUNCTION.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY, THE COURT MADE THE FOLLOWING:

ORAL ORDER

Needful is stated to have been done.

Office to verify and proceed.



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Two weeks time is granted to file paper book, failing which, the appeal stands dismissed without reference to the Bench.

List this appeal along with RFA No.981/2022.

**Sd/-
JUDGE**

NOTE: Vide Court Order dt.07.08.2025, the advocate for appellant has not filed paper book. Hence Appeal stands dismissed.

COPY

**Sd/-
I/C ASSISTANT REGISTRAR**

T By : MK

R By : VL

C By : STE